

# HOUSE . . . . . No. 718

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## The Commonwealth of Massachusetts

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PRESENTED BY:

*Joshua Tarsky*

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*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to reduce out-of-school suspensions.

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PETITION OF:

| NAME:                | DISTRICT/ADDRESS:   | DATE ADDED:      |
|----------------------|---------------------|------------------|
| <i>Joshua Tarsky</i> | <i>13th Norfolk</i> | <i>1/15/2025</i> |

# HOUSE . . . . . No. 718

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By Representative Tarsky of Needham, a petition (accompanied by bill, House, No. 718) of Joshua Tarsky for legislation to reduce out-of-school suspensions. Education.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act to reduce out-of-school suspensions.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           Section 37H¾ of chapter 71 of the General Laws, as appearing in the 2022 Official  
2 Edition, is hereby amended by adding the following subsection:-

3           (g)(1) For the purposes of this subsection, the term “in-school suspension” shall mean the  
4 removal of a student from regular classroom activities, but not from the school premises, for no  
5 more than 10 consecutive school days, or no more than 10 school days cumulatively for multiple  
6 infractions during the school year.

7           (2) Schools shall offer, where appropriate, an option for in-school suspension. A student  
8 serving an in-school suspension shall have the opportunity to earn credits, as applicable, and  
9 make up assignments, tests, papers and other school work as needed to make academic progress  
10 during the period of their removal from the classroom or school. In-school suspensions shall be  
11 monitored by: (i) at least 1 person who holds a standard educator certificate or a provisional  
12 educator certificate, pursuant to section 38G, and has experience teaching subject matter

13 involving science or mathematics; and (ii) at least 1 person who holds a standard educator  
14 certificate or a provisional educator certificate, pursuant to said section 38G, and has experience  
15 teaching subject matter involving the humanities or social sciences; provided, that 1 person may  
16 satisfy the requirements of clauses (i) and (ii).

17 (3) The department shall provide funding or staff to any school that demonstrates an  
18 insufficient funding or staffing level for the maintenance of an in-school suspension program, as  
19 determined by the department.